

1.

CASE #	CASE NAME	HEARING NAME
CVME2604699	CRUZ VS PACIFIC COAST BUILDERS & REMODELERS INC	PETITION RE: ARBITRATION AWARD

Tentative Ruling: GRANTED. No opposition filed.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2207261	LOWRY VS HOPE AND TRUST TRADING, INC.	MOTION TO ENFORCE JUDGMENT

Tentative Ruling: DENIED.

The Motion to Enforce Judgment should be denied since the proceedings are stayed, and the Court of Appeal has determined that the default judgment of which Judgment Creditor seeks enforcement is void.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2207261	LOWRY VS HOPE AND TRUST TRADING, INC	MOTION TO ENFORCE JUDGMENT

Tentative Ruling: DENIED.

The Motion to Enforce Judgment should be denied since the proceedings are stayed, and the Court of Appeal has determined that the default judgment of which Judgment Creditor seeks enforcement is void.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2310021	YINGLING VS YOUNGREN	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: GRANTED.

Lynn Yingling (“Lynn”) and Edward Yingling (collectively “Plaintiffs”) contend that Lynn was injured when a vehicle driven by Steven E. Lowe’s (“Decedent”) crossed over the center divider lines and struck her vehicle. It is alleged the Estate of Steven Eugene Lowe; Jennifer Youngren (“Youngren”) the trustee of the Steven E. Lowe 2022 Trust, and Debbie Trkja (“Trkja”) either owned, leased, maintained, or otherwise controlled the vehicle driven by Decedent.

The first amended complaint (“FAC”) asserts the following claims: (1) negligence, (2) negligent entrustment, and (3) loss of consortium. Youngren and Estate of Steven E. Lowe filed a cross-complaint against Plaintiffs alleging that Plaintiffs had entered into a settlement agreement with them but have breached said agreement by refusing to perform. The cross-complaint asserts a cause of action for breach of contract and judicial estoppel. Trkia has filed a nearly identical cross-complaint against Plaintiffs asserting the same claims.

Youngren brings this motion seeking summary judgment as to Plaintiff's FAC. She contends that the trust did not drive the vehicle involved in the accident; was not present at the accident; did not have relationships with the other defendants; and did not own, control, rent, use, sold, design, maintain, repair, construct, manufacture, lease, drive, entrust, manage, or inspect the vehicle involved in the accident. She contends the trust did not owe a duty of care to Plaintiff. Due to this, she asserts the negligence, negligent entrustment, and loss of consortium claims fail as to the trust.

In opposition, Plaintiffs contend that they do not assert their claims against the trust on the grounds that the trust breached a duty of care. They assert that Decedent was negligent. However, Decedent's claims survive his death and as an operation of law, Plaintiffs can seek to recoup their losses from the trust because Decedent died without a probate administration and Youngren never initiated trust claim procedures. Due to this, they are able to assert their claims against Decedent through Youngren. They argue that Youngren is mistaken about the legal theory Plaintiffs asserted against her and because of this, her motion fails.

In reply, Youngren argues that the theory of liability asserted in opposition is not set forth in the FAC. She argues that Plaintiffs are not permitted to rely on a legal theory not set forth in their pleading.

The claims asserted in Plaintiffs' FAC are negligence, negligent entrustment, and loss of consortium. A negligence claim requires a duty of care, breach of said duty, causation, and damages, (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) A negligent entrustment cause of action requires (1) the driver was negligent in operating the vehicle, (2) the defendant had possession of the vehicle operated by the driver with the owner's permission, (3) the defendant knew, or should have known that the driver was incompetent or unfit to drive the vehicle, (4) the defendant permitted the driver to drive the vehicle, and (5) the driver's incompetence or unfitness was a substantial factor in causing injury to the plaintiff. (*McKenna v. Beesley* (2021) 67 Cal.App.5th 553, 565-566.) Loss of consortium requires: (1) a marriage between the individual asserting the claim and the person injured by the defendant, (2) tortious injury to the spouse of the individual asserting the claim, (3) the asserting party has suffered loss of consortium, (4) the loss was proximately caused by defendant's conduct. (*Vanhooser v. Superior Court* (2012) 206 Cal.App.4th 921, 927. "A cause of loss of consortium is, by its nature, dependent on the existence of a cause of action for tortious `injury to a spouse.'" (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 746.) A trust is not a legal entity. (*Greespan v. LADT LLC* (2010) 191 Cal.App.4th 486, 521.) It is a collection of assets and liabilities. (*Ibid.*) It has no capacity to sue or be sued. (*Ibid.*) A trustee in their representative capacity can sue or be sued on behalf of the trust. (*Ibid.*)

Plaintiffs argue that these causes of action are not being asserted against Youngren for any duty of care she/the trust owed, but because the trust can be held liable for Decedent's wrongful conduct because no probate was open and no trust claim procedure was initiated. However, this is not what is asserted in the FAC. "The complaint limits the issues to be addressed at the motion for summary judgment. The rationale is clear: It is the allegations in the complaint to which the summary judgment motion must respond." (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258.)

All three motions are asserted collectively against all the defendants. The first cause of action alleges that the defendants, “each of them, had a duty to exercise reasonable care in operating a motor vehicle, including but not limited to keeping a proper lookout for other vehicles; maintaining an appropriate speed under the circumstances; keeping their eyes on the road; controlling the speed and movement of their vehicle; and driving with due regard for the safety of all persons using the road.” (FAC, ¶ 18.) It is alleged that each of the defendants “failed to use reasonable care in operating, owning, driving, maintaining, entrusting, managing, controlling, or inspecting the SUBJECT VEHICLE such that their failure to use reasonable care caused the SUBJECT INCIDENT and the resulting injuries, harm, or damages alleged in this Complaint.” (FAC, ¶ 21.) It is alleged that all the defendants negligently entrusted or allowed Decedent to drive the vehicle. (FAC, ¶¶ 26 and 27.) It is alleged that all the defendants’ negligence caused injuries to Plaintiff. (FAC, ¶ 28.)

The second cause of action alleges that each of the defendants knew that Decedent was incompetent/unfit, all the defendants owned/leased/maintained/controlled the vehicle Decedent drove, and defendants’ conduct caused Plaintiffs’ injuries. (FAC, ¶¶ 30-36.) The loss of consortium cause of action alleges that due to the defendants’ conduct, Edward Yingling was injured. (FAC, ¶ 42.) There are no allegations in the FAC that liability is being sought against Youngren because no probate was open and no trust claim procedure was initiated. Only direct liability appears to be sought against Youngren for the trust’s alleged negligence. Due to this, Plaintiffs’ arguments in opposition regarding the basis of Youngren’s liability cannot be considered.

Youngren provides a declaration that no one on behalf of the trust was a driver, operator, or passenger of the vehicle involved in the accident. (Declaration of Jennifer Youngre, ¶¶ 3 and 4.) She provides that no one on behalf of the trust had information or knowledge about a malfunction or defect of the vehicle involved in the accident. (Id. at ¶ 6.) She states that the other defendants and Decedent were not an agent, servant, partner, or employee of the trust. (Id. at ¶¶ 7-11.) She declares that the vehicle driven by Decedent was not owned, controlled, used, rented, sold, designed, maintained, repaired, built, manufactured, leased, entrusted by, managed, or inspected by the trust. (Id. at ¶¶ 16-26.) Based on this evidence, it appears that Youngren has established that there was no duty or breach of duty by the trust, as alleged by the FAC. Due to this, Youngren has met her initial burden. Plaintiffs have failed to provide any evidence to give rise to a triable issue of material fact. Plaintiffs have asserted objections to Youngren’s declaration. However, their objections to the evidence discussed above, lacks merit. Due to this, the motion is denied.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2402566	CITY OF TEMECULA VS HASKELL	MOTION FOR ORDER TO SHOW CAUSE RE: CONTEMPT

Tentative Ruling: Set for hearing AS IT IS NOT CLEAR WHETHER Defendant City is requesting contempt CRIMINAL OR CIVIL PROCEEDING.